

Court No. - 39

Case :- WRIT - C No. - 8413 of 2021

Petitioner :- M/S Maa Kaila Devi Sheetgarh Kukthari Pinaphat

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Rahul Mishra

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Mrs. Sadhna Rani (Thakur), J.

The petitioner is aggrieved by the demand notice dated 07.11.2020.

Learned counsel for the petitioner submits that the petitioner could not deposit electricity charges on account of closure of cold storage due to adverse situation arising out of pandemic Covid-19. It is contended that the business of cold storage could not be revived even after lifting of lockdown by the Central Government following the Corona virus outbreak. Facing adverse economic condition, the petitioner has approached this Court seeking indulgence on account of issuance of the demand notice issued by respondent No. 2 on 07.11.2020.

At the outset, learned counsel for the petitioner states that the petitioner is ready and willing to make payment of electricity dues, in case liberty is granted to the petitioner to pay the amount in easy installments.

Sri Baleshwar Chaturvedi, learned Counsel for the respondent No. 2, submits that under Clause 6.14 of Uttar Pradesh Electricity Supply Code, 2005, it is within the jurisdiction of the Executive Engineer concerned to deal with the prayer made by the petitioner for fixation of the installments of electricity dues.

Learned counsel for the petitioner further submits that the said power is limited under the provisions of Clause 6.14 of Uttar Pradesh Electricity Supply Code, 2005 and adequate relief may not be granted to the petitioner.

Dealing with the above, it is relevant to note that the country is facing economic crisis on account of pandemic Covid-19. Some of the businesses could not be restored to their original position even today on account of current rise of Covid-19 positive cases and the strict protocol, which is being followed for containment of the virus. It seems that the business of cold storage has suffered economic loss and the petitioner has not been able to make up the payment of electricity dues after

March, 2020.

In the opinion of the Court, having regard to the above situation, the respondent No. 2 is directed to consider the prayer of the petitioner for fixation of installments, which is within his jurisdiction under Clause 6.14 of Uttar Pradesh Electricity Supply Code, 2005. Adequate relaxation shall be given to the petitioner giving him sufficient time to repay the electricity dues by giving due consideration to the above observations by the competent authority. In case, the respondent No. 2 finds that his power is limited to certain extent, he may refer the matter to the higher authority for consideration. Sympathetic consideration in any case, shall be given to the petitioner by the concerned authority while fixing installments in accordance with the provisions of the Uttar Pradesh Electricity Supply Code, 2005.

A decision in accordance with law shall be taken preferably within a period of four weeks of receipt of a copy of this order. The demand notice dated 07.11.2020 shall be subject to the fresh decision to be taken by the respondents.

The writ petition is, accordingly, disposed of.

Order Date :- 25.3.2021

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